

HEADNOTE

“1. To assess whether a party is the holder of an “exclusive licence” within the meaning of Art. 47(2) UPCA, it is decisive whether a licensee is entitled to solely use and to exclude others, including the patent proprietor, from using the patented invention, which includes, in the case of an infringement, the right to assert claims. This does not necessarily mean that the right to use the patented invention can only be licensed to one exclusive licensee in its entirety and without limitations. An exclusive licence may, for instance, be limited in terms of its geographical scope, field of use or duration.

2. In order for a prior art disclosure to be relevant for novelty, the disclosure must be such that the skilled person can reproduce it using common general knowledge, i.e. the skilled person must be able to carry out the teaching of the prior art. Absent such an enabling disclosure, there is no (complete) technical teaching in the prior art and hence no potentially novelty-destroying disclosure.

3. In case of a mere aggregation of two independent methods, whereby the features of these methods do not interact functionally to produce an effect that goes beyond mere addition in solving the objective problem but are simply juxtaposed, the combination of these two methods, both being not novel or at least non-inventive, cannot be held inventive. The skilled person would, as a matter of routine, combine these two methods.”

COURT
Local Division in Munich

PROCEEDINGS
Infringement action

PATENT
EP 2 401 365

Reengineering mrna primary structure
for enhanced protein production

KEYWORDS

exclusive licence

enabling disclosure

inventive step

Article 47 Parties**SUMMARY**

The Local Division in Munich ruled on an infringement action. The patent at issue relates to reengineering mRNA primary structure for enhanced protein production. According to the headnotes of the decision, a licensee qualifies as the holder of an exclusive licence under the UPCA if they have the sole right to use the invention and to exclude others, including the patent proprietor, from using it, which may be limited by geography, field of use, or duration. For a prior art disclosure to destroy novelty, the skilled person must be able to reproduce and carry out the teaching disclosed in that prior art using their common general knowledge. Where two independent methods are merely aggregated without functional interaction that produces an effect beyond simple addition, their combination cannot be considered inventive if the individual methods themselves lack novelty or inventiveness.